

In his paper “If He Hollers Let Him Go: Regulating Racist Speech on Campus”, Charles Lawrence posits three pillar arguments against racist hate speech. First, he highlights that “our constitution already commits us to some form of regulation of racist speech” (58); second, that rules and regulations can be created “without significant departure from existing first amendment doctrine”(58); and third, that we must reconsider the ratio of “our concerns for racial equality and the freedom of expression” (71) with respect to the injuries caused by the use of racist hate speech. In the order in which they are presented, Lawrence’s arguments will be explicated to give a better understanding of his position regarding this type of speech and if it deserves protection from the first amendment.

Lawrence’s first mission is to give an interpretation of *Brown*, showing how it pertains to racist hate speech. He states, “this interpretation is useful even for those who believe the censorship of any expression cannot ultimately be condoned: *Brown* can help us better understand the injury of racist hate speech, and understanding that is vital to our discussion” (58). According to Lawrence, “the practice of segregation” manifested through speech, and it was this practice that “the Court held inherently unconstitutional” (59). It seems that certain groups of people believe Lawrence to be incorrect, holding on to the view that speech was not the intended focus of *Brown*, but rather aimed at “discriminatory conduct”, and from it resulted “the defamatory message conveyed by segregation” (60). Yet, Lawrence is convinced that it is the other way around, stating, “the non-speech elements are by-products of the main message rather than the message being simply a by-product of unlawful conduct.” So whether it be audible or symbolic speech (e.g., someone saying something directly vs. someone wearing something that holds a message), it is this that causes whatever actions may arise. Lawrence continues with, “my suggestion that *racist* conduct amounts to speech is premised upon a unique

characteristic of racism – namely its reliance on the defamatory message of white supremacy to achieve its injurious purpose” (60). If the main objective of segregation is to spread the message of white supremacy, then the fact that *Brown* “declared that segregation is unconstitutional” can also be read as “a regulation of the message of white supremacy”, and as a result, “*Brown* and its progeny require that the systematic group defamation of segregation be disestablished” (60).

The second part of Lawerence’s argument focuses on how we can create rules and regulations to protect against racist hate speech, without having to greatly change the framework with which we operate, i.e., the First Amendment. Regulations have been implemented across college campuses with the goal of preventing future cases where this type of speech can be used. He presents Stanford’s regulation act in full, zooming in on a particular form of racist speech, known as “fighting words” – “words, pictures or symbols that by virtue of their form, are commonly understood to convey direct and visceral hatred or contempt for human beings” (67). He states “when racist speech takes the form of face-to-face insults, catcalls, or other assaultive speech, aimed at an individual, or a small group of persons, then it falls within the “fighting words” exception to first amendment protection” (67). He argues that an insult, face-to-face, is equivalent to the use of fighting words, and then states two reasons for why this is “undeserving of first amendment protection” (67). First, he says that “the injury is instantaneous” – it becomes hard to react really; and second, that racial insults take away from the goal of the first amendment – that is “to foster the greatest amount of speech” (68). From an earlier statement that Lawerence gave regarding the use of fighting words: “The regulation of racist fighting words should not be treated differently from the regulation of garden-variety fighting words, and captive audiences deserve no less protection when they are held captive by racist speakers” (58).

Lawrence then shifts his argument to focus more on the injury caused by fighting words. He specifically writes about libertarians, and how they “urge that the first amendment prohibits any regulation of racist speech”. Lawrence states that they have simply “given inadequate attention to the testimony of individuals” affected by this type of speech, and that they fail to “comprehend the nature and extent of the injury” (71). With this, Lawrence expresses the need to reconsider two things: the “balance that must be struck between our concerns for racial equality and freedom of expression”; and “whether the racist speech that we chose to regulate is advancing or retarding the values of the first amendment” (72). We need to stop trying to understand the feelings felt by those that become victims of hateful encounters, as this downplays their experience, and it becomes clear that we make it more about ourselves for a moment. This is not helpful in the balancing of things. So, we need a solution, and thankfully, Lawrence offers one that is short and sweet: “My plea is that we simply listen to the victims” (72).